

		<i>Exhibits L and M attached to the moving papers. (ROA 116)</i> As plaintiff has not filed an opposition to this motion, plaintiff has not met his now shifted burden raising a triable issue of fact as to the standard of care and causation issues. Therefore, summary judgment is GRANTED in favor of moving defendants. The court sets the matter for a status conference on October 27, 2023 at 9:00 a.m. in C-28 to discuss plaintiff's complaint as it relates to Does 1-50. Should plaintiff fail to appear, the court shall dismiss the complaint. Moving defendants shall give notice.
51.	Route Four LLC v. Burkhart 2020-01129185	Defendants Luxx Lighting, Inc.'s and Athena Products, Inc.'s Motion For Summary Judgment and/or Summary Adjudication is DENIED. (See Code Civ. Proc. § 437c.) Defendant met its initial evidentiary burden as to Noticed Issue No. 1 (related to the 7th and 8th causes of action ("COA") intentional interference with contract). The burden then shifts to the plaintiff. Plaintiff met its shifted evidentiary burden to show the existence of one or more triable issues of material fact as to Noticed Issue No. 1. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 851 [burden].) A triable issue of material fact exists as to undisputed material fact ("UMF") 25 as to whether Falcon purchased lights from Luxx in 2019. This triable issue

	is created by Plaintiff's Exh. I, Nichols as PMK Depo., 139:1-25.) Triable Issues of material fact exist as to UMFs 29, 35, 38, 41, 47, 50, 56, 60, & 64 as to whether plaintiff could provide any information regarding the terms of plaintiff's contracts with Jungle Boys, Gentleman's Cut, ASPYR/Zenco, Phat Panda, Falcon Brands and Elevated. These triable issues are created by the Alston declaration paragraph 30, Exh. J-N & W-CC. Defendants failed to meet their initial evidentiary burden as to Noticed Issues No. 2 (related to 11th COA alleging interference with the asset purchase agreement) & No. 3 (related to aiding and abetting a breach of fiduciary duty). As it relates to Issue No. 2, defendants argue that plaintiff alleges in the complaint that defendants Luxx and Athena are agents of Burkhart and Rails, and agents, like principals cannot be charged with wrongfully interfering with contracts to which they are a party. (See <i>Caliber Paving Co., Inc. v. Rexford Indus. Realty & Mgmt., Inc.</i> (2020) 54 Cal.App.5th 175, 177-78.) According to plaintiff, the allegations in the complaint constitute "judicial admissions," and are conclusive concessions. See <i>CytoDyn of New Mexico, Inc. v. Amerimmune Pharmaceuticals, Inc.</i> (2008) 160 Cal.App.4th 288, 299 fn. 9. Plaintiff's opposition cites to <i>Barsegian v. Kessler & Kessler</i> (2013) 215 Cal.App.4th 446, 571-73. The reasoning in <i>Barsegian</i> is persuasive. While the opinion dismisses the agency allegations in the complaint as "boilerplate," the court does address the fact that a judicial admission is binding on both parties. In this case, defendants contested the existence of agency in their answer. Defendants cannot have judicial admissions adhere to one party but not the other. See <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 615. And the <i>CytoDyn of New Mexico</i> case is distinguishable because it involved a motion to compel arbitration by a third party who was not a party to the arbitration clause and the possibility
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	of contradictory rulings. Arbitration agreements have been treated differently by the courts when compared to other types of contracts. As defendants cannot defeat each theory under noticed issue No. 2, the motion fails. As it relates to Issue No. 3, defendants rely on UMF 78-79, which (in summary) asserts a fiduciary relationship arising from a contract. Whether a fiduciary relationship exists as a result of a contract is a question of fact. <i>Magnecomp Corp. v. Athene Co.</i> (1989) 209 Cal.App.3d 526, 536-537. The court rules as follows on plaintiff's evidentiary objections: Declaration of Ivan Van Ortwick. 1-5 Sustained, sham declaration 6-7 Overruled 8. Sustained, sham declaration 9. Overruled 10. Sustained, lack of foundation 11-15 Overruled Declaration of Amberlee Rails. 5-10 Overruled 11. Sustained, hearsay 12. Overruled 13-14 Overruled 16. Overruled
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		17-19 Sustained, hearsay 20-26 Overruled Declaration of Natalie Hardcastle. 2-7 Overruled Declaration of Aries Malone. 2-5 Overruled Declaration of Brian Carlevato. 2-5 Overruled 8-12 Overruled Declaration of Robert McKinley. 2 Overruled 2 Overruled 3-4 Overruled 6 Sustained, hearsay 7 Overruled Declaration of Ryan Carson. 2-4 Overruled Declaration of Aries Malone.
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		2-3 Overruled 4 Sustained, sham declaration 5 Overruled Declaration of Seema Sudhir. 2 Sustained, lack of foundation 3-7 Overruled Declaration of Ronnie Lopez. 3-4 Overruled Declaration of Etan Woods. 2-7 Overruled The court rules as follows on defendants' evidentiary objections: Declaration of Kenneth Alston. 18. Sustained, sham declaration 20 Sustained, lack of foundation 21 Sustained, lack of foundation 22 Sustained, lack of foundation 23-24 Sustained, lack of foundation 25 Sustained, sham declaration 26 Sustained, lack of foundation 27 Sustained, hearsay 29 Sustained, lack of foundation
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		30 Overruled 31 Overruled. As a reply separate statement is not authorized in the summary judgment statute or Rules of Court, the court declines to consider the same. The court also declined to consider the supplemental declaration filed with the reply. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-38). Plaintiff's request to continue the hearing is denied. Plaintiff's supporting evidence fails to establish the specific facts plaintiff expects to obtain, an estimate of the time necessary to obtain the information, and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (See <i>Granadino v. Wells Fargo Bank, N.A.</i> (2015) 236 Cal.App.4th 411, 420.) Defendants shall give notice.
52.	State Farm General Insurance Company v. Alai 2019-01065145	Cross-defendants James M. Baratta, Milton V. Fajardo, Michael Genovese, and Grant Genovese Baratta LLP's motion to strike cross-complainants 12712, LLC and TSC, Inc.'s operative first amended cross-complaint is GRANTED, without leave to amend. (See Code Civ. Proc., §§ 436, subd. (b), 428.10; see also <i>id.</i>, § 428.20.) A cross-complaint must be brought, at least in part, by a party "<i>against whom</i> a cause of action has been asserted in a complaint or cross-complaint." (See Code Civ. Proc., §§ 428.10, 428.20.) Neither 12712 LLC nor TSC, Inc., the only two cross-complainants to the subject cross-complaint, is "[a] party against whom a cause of action has been